

At the 22nd Annual Conference of Data Protection Authorities of Central and Eastern Europe (CEEPPA), held from February 28 to March 1, 2024, in Tbilisi, Georgia, Director Zdravko Vukić delivered an online lecture titled "Special Provisions of the Law on the Implementation of the General Data Protection Regulation: Video Surveillance, Processing of Biometric Data, and Imposition of Fines."

Director Vukić presented the Croatian legislative framework to representatives of data protection authorities, specifically the Law on the Implementation of the General Data Protection Regulation, which more precisely defines the processing of personal data through video surveillance systems (Articles 25 – 32), as well as the processing of biometric data (Articles 21 – 24). He emphasized that there are certain practical issues concerning video surveillance systems. Namely, the Agency has an office only in Zagreb and receives a large number of complaints from citizens across the Republic of Croatia regarding video surveillance systems installed by individuals, which means that significant human and financial resources are utilized for monitoring in private homes and residential buildings. He also pointed out that the Agency has the authority to issue an order to an individual (natural person) to remove unlawfully installed video surveillance cameras, but does not have the authority for the physical removal of such cameras. Additionally, he spoke about administrative monetary fines prescribed by Article 51 of the Law on the Implementation of the General Data Protection Regulation, as well as the exclusion of their application to public authorities in the context of the mentioned Law.

The conference also featured Anamarija Mladinić, Head of the Sector for EU, International Cooperation, and Legal Affairs, who, within the panel "Best Practices of CEEPPA and Other European Data Protection Authorities," presented the results of the coordinated enforcement activity for 2023 (Coordinated Enforcement Framework – CEF 2023) in the Republic of Croatia, which the Agency conducted in cooperation with the European Data Protection Board (EDPB) alongside data protection authorities throughout the European Economic Area and in collaboration with the European Data Protection Supervisor (EDPS) on the topic of the appointment and role of data protection officers.

Specifically, the Agency sent a questionnaire to over 6,000 organizations from the private and public sectors that have appointed data protection officers to assess whether the data protection officers have the adequate role and position required by Articles 37-39 of the General Data Protection Regulation and the resources necessary to perform their tasks.

Based on the more than 3,000 responses received, it appears that organizations in Croatia generally have difficulties in appointing appropriate data protection officers within their organization, as well as externally. Furthermore, a large number of officers lack the necessary knowledge and skills to perform their tasks and duties, often struggle with avoiding conflicts of interest between their duties and other responsibilities within the organization, and do not have sufficient independence in their work, with their advice often not being respected.

Additionally, Head Mladinić presented the web tool "Olivia," which the Agency is developing as part of the ARC II project, which you can try out at the link: <https://olivia-gdpr-arc.eu/hr>.

The goal of the Conference of Data Protection Authorities of Central and Eastern Europe is to support the implementation of international data protection standards and to exchange experiences and best practices. Data protection authorities take the opportunity to discuss various aspects of personal data protection, challenges and opportunities, as well as to exchange best practices.

The first meeting of CEEPPA was held in Warsaw on December 17, 2001. Since then, member supervisory authorities have met annually to intensify cooperation and contribute to raising awareness of personal data protection.